

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDY C. ALMONTE MEDINA,

Petitioner

VS.

GERALDINE AYERDIS,

Respondent

) Case Number: FDI-24-800741

) Hearing Date: June 25, 2026

) Hearing Time: 1:30 PM

) Department: 414

) Presiding: MUJDAH RAHIM

FATHER'S REQUESTS FOR NEED-BASED ATTORNEY'S FEES AND THE PARTIES' REQUESTS
RELATED TO FINANCIAL DISCLOSURES - ADDED TO CALENDAR FOLLOWING 4/23/26
HEARING IN DEPT. 404; REQUEST FOR BIFURCATION OF MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Randy C. Almonte Medina (Husband) and Respondent Geraldine Ayerdis (Wife).
- 2) There are two matters on for hearing on June 25, 2026: (a) Husband's March 2, 2026 Request for Order as set forth below; and (b) Husband's request to bifurcate and terminate marital status, which the Court continued at the prior May 7, 2026 hearing (see Findings and Order After Hearing filed May 8, 2026).
- 3) On March 2, 2026, Husband filed a Request for Order. All issues raised in the motion have been adjudicated except for Husband's request for attorney's fees and costs. Husband requests that Wife contribute to his attorney's fees based on a disparity of income and financial circumstances. He seeks an award of \$7,660 in attorney's fees and costs. In support of his request, Husband

1 attached a receipt from the Law Offices of Ali Yousefi, P.C., showing a payment of \$7,500 made
2 on June 19, 2025. The total attorney's fees and costs incurred are \$7,600.

3 4) Wife filed a Responsive Declaration on January 13, 2026. In her response, Wife requests that the
4 Court postpone any decisions regarding property division, assets, and attorney's fees and instead
5 order mediation. Wife contends that Husband has failed to provide documentation supporting the
6 attorney's fees and costs he claims to have incurred. She also alleges that Husband owns rental
7 property in the Dominican Republic that is not titled in his name, but from which receives rental
8 income.

9 5) On June 16, 2026, under docket FCS-24-357088, an Order After Hearing was filed. Effective
10 June 1, 2026, guideline child support is \$1,499 per month (base child support of \$1,079 and
11 childcare add-on of \$420), payable by Husband. The Court also ordered temporary spousal
12 support of \$227 per month, payable by Wife. After offsetting the support obligations, Husband
13 was ordered to pay net child support of \$1, 272 per month, effective June 1, 2026. At the hearing,
14 no evidence was presented establishing that Husband received rental income. Accordingly, no
15 rental income was included in the support calculation.

16 6) A review of the X-Spouse calculation shows Husband has net spendable income of \$5,111 per
17 month, while Wife has net spendable income of \$10,389 per month. Wife has deductions of
18 \$1,327 per month.

19 7) Husband filed an Income and Expense Declaration on May 11, 2026, reporting monthly expenses
20 of \$7,539 per month and \$2,438.89 for amount of expenses paid by others. The declaration
21 indicates Husband resides with his partner and her three children. Husband also reported
22 \$2,323.93 in checking and savings.

23 8) Wife filed her Income and Expense Declaration on June 5, 2026, reporting monthly expenses of
24 \$9,071.59. However, the expenses appear to be based on annual figures rather than monthly
25 amounts. For example, her property tax is listed as \$6,652.16 annually, with a monthly equivalent
26 of approximately \$554 per month. Using corrected monthly figures, Wife's expenses total
27 approximately \$8,631 per month. With reported \$3,000 in checking and savings accounts. The
28 value of her retirement account is unknown; however, she is currently contributing to \$1,327 per
29 month.

1 **B. Findings and Order**

- 2 1) Bifurcation and Termination of Marital Status: Public policy favors bifurcation and termination of
3 marital status.
- 4 2) The Court finds that Husband's request for bifurcation of trial and termination of marital status is
5 unopposed.
- 6 3) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court further
7 finds that:
- 8 a. Husband filed a Petition for Dissolution on 12/27/2024.
- 9 b. Under Family Code Section 2339(a), the Court first acquired jurisdiction over Wife when
10 Wife was served with Husband's Petition and Summons on January 8, 2025.
- 11 c. Wife filed a Response and Request for Dissolution on February 7, 2025.
- 12 d. Within the Petition and Response, both parties indicated that they were residents of
13 California for at least six months and of San Francisco County for at least three months
14 immediately preceding the filing of the Petition.
- 15 e. Within the Petition and Response, both parties request a divorce based on irreconcilable
16 differences.
- 17 f. On 12/26/2026, Husband filed a Proof of Services of Summons reflecting Wife was
18 personally served with a completed and blank Schedule of Assets and Debts (FL-142)
19 and Completed and blank Income and Expense Declaration (FL-150) on 12/25/2025.
- 20 g. On June 2, 2026, Husband filed a Final Declaration Regarding Service of Declaration of
21 Disclosure and Income and Expense Declaration.
- 22 h. Attached to a declaration filed June 11, 2026, Husband filed Request for Separate Trial
23 (FL-315).
- 24 4) Accordingly, Husband's unopposed request to bifurcate and terminate the parties' marital status
25 is GRANTED. Each party is restored to their previous single status as of 6/25/2026. The Court
26 finds that this termination date meets the requirement set forth in Family Code Section 2339(a).
- 27 5) As set forth in the attached Bifurcation of Status of Marriage (FL-347), the protection of Family
28 Code Section 2337(c)(1)-(6) shall apply.
29

- 6) The parties are reminded that despite the termination of their marital status the Standard Family Law Restraining Orders set forth in the Summons continue to apply to both parties per Family Code Section 233(a).
- 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved.
- 8) Attorney's Fees and Costs: The Court finds an award of attorney's fees and costs is appropriate here because there is a demonstrated disparity between the parties in access to funds to maintain counsel and in the ability to pay for legal representation.
- 9) The Court further finds that Wife is reasonably likely to have the ability to pay for legal representation for both parties and \$5,000 in fees and costs are reasonably necessary.
- 10) Wife shall pay Husband \$500 on the 1st of the month and \$500 on the 15th of each month, beginning July 1, 2026, until the total amount of \$5,000 is paid in full.
- 11) The Court reserves jurisdiction over allocation and characterization of this fee award.
- 12) The Court will prepare the Findings and Order After Hearing and Status Only Judgment with form FL-347 mirroring the terms of the FL-347 attached hereto. These documents will be mailed to each party.

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BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 6/25/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Petitioner's 401(k) retirement account

Type of order attached

3a(1) 3a(2) 3a(3)

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☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

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5. **☒ Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. **☒ Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. **☒ Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. **☒ Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. **☒ Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. **☐ Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. **☐ Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached: 0

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.